



File No: EXP202306302

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 31, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LABORATORIO PEDRO PERALES, S.L.P. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

Procedure No: EXP202306302 (PS/00167/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

FACTS

FIRST: On 03/04/23, Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity, LABORATORIO PEDRO PERALES, S.L.P. with CIF: B23636103, owner of the website, <https://www.medicalfit.com> (<http://www.dentalesthetic.es/>), (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In his complaint, he states, among other issues, that the information and management of cookies on their website do not comply with the provisions of data protection regulations.

SECOND: On 18/05/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notification and Electronic Address Service, was sent to the respondent on 18/05/23 via the electronic notification service, "NOTIFIC@", being accepted on 19/05/23, with no record of any response from the respondent to this forwarding.

THIRD: On 03/07/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 27/09/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the request to the respondent, for them to inform this Agency about the aspects included in the complaint within ten days.

The request, which was carried out in accordance with the rules established in the LPACAP, according to the certificate from the Electronic Notification and Electronic Address Service, was sent to the respondent on 27/09/23 via the electronic notification service, "NOTIFIC@", being accepted on the same day, 27/09/23.

FIFTH: On 12/10/23, the respondent submitted a written response to the request in which, among other issues, they state regarding the "Cookie Policy" of the website in question, the following:

"(...) FOURTH.- Regarding the entity's website, it is indicated in the complaint that it does not adequately inform about the collection of user data, as the treatments to be carried out are not identified, and the management and information of cookies do not comply with the provisions of data protection regulations. In this regard, the website <https://dentalesthetic.es/> is out of use, and no personal data of any kind, nor relevant information, can be collected. When accessed, it automatically redirects to the main website of the company, <https://www.medicalfit.es/>. However, the entity cannot close the aforementioned out-of-use website as all emails belonging to the company's staff depend on its domain. Attached as DOCUMENT No. SEVEN, is a report/declaration of responsibility from the organization. For evidentiary purposes, the link to the website <https://dentalesthetic.es/> is provided to verify that it is out of use and that there is an automatic redirection to the main website of the entity (...)."

SIXTH: On 27/03/24, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding its "Cookie Policy":

It is verified that when attempting to access the website <http://www.dentalesthetic.es/>, it redirects the user to the website <https://www.medicalfit.com>, with the characteristics of its "Cookie Policy" being as follows:

a- Regarding the use of cookies before the user gives their consent:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/17

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used:

****Analysis or Measurement Cookies:**** These are the cookies that allow the responsible party to track and analyze the behavior of users on the websites to which they are linked, including quantifying the impacts of advertisements.

****Cookies****

****Domain****

****Description****

ga

4H4WSZ6691

.medicalfit.com

Google Analytics uses this to maintain the session state.

_ga

.medicalfit.com

This cookie is associated with Google Universal Analytics and is used to distinguish users by assigning a randomly generated number as a client identifier. It is included in each page request of a site and is used to calculate visitor, session, and campaign data for the site's analytical reports.

****Targeting or Behavioral Advertising Cookies:**** These are the cookies that store information about user behavior obtained through continuous observation of their browsing habits, allowing for the development of a specific profile to display advertising based on that.

****Cookies****

****Domain****

****Description****

_fbp

.medicalfit.com

Used by Meta to deliver real-time advertising products from external advertisers.

****Preference, Personalization, or Functionality Cookies:**** These are the cookies that allow remembering information so that the user accesses the service with certain characteristics that may differentiate their experience from that of other users, such as, for example, the language, the number of results to display when the user performs a search, the appearance or content of the service based on the type of browser through which the user accesses the service or the region from which the user accesses the service, etc.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/17

****Cookies****

****Domain****

****Description****

pll_language

.medicalfit.com

Stores the language setting.

d).- **Google Analytics Cookies:**

Cookies

Domain

Description

AEC

.google.com

Used to detect spam, fraud, and abuse to ensure that advertisers are not incorrectly charged for fraudulent or invalid impressions or interactions with ads, and that YouTube creators in the YouTube Partner Program are compensated fairly.

DV

.google.com

Used by Google to provide services and extract anonymous information about browsing.

NID

.google.com

Google tracks users and uses the collected data to profile the interests of web users and sell advertising space to organizations based on those interest profiles, as well as to align ads with the content of the pages where their clients' ads appear.

SOCS

.google.com

Google uses this cookie to store the user's cookie choices.

d).- **Cookies whose function has not been identified:**

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/17

Cookies

Domain

Notes

cookielawinfo-checkbox-necessary

.medicalfit.com

The information provided about this cookie in the Cookie Policy of the website is written in English.

(Translation: This cookie is set by the GDPR cookie consent plugin. The cookies are used to store the user's consent for cookies in the "Necessary" category.)

resolution

.medicalfit.com

There is no information about the purpose of the cookie on the website.

cookielawinfo-checkbox-performance

.medicalfit.com

The information provided about this cookie in the Cookie Policy of the website is written in English.

(Translation: This cookie is set by the GDPR cookie consent plugin. The cookies are used to store the user's consent for cookies in the "Performance" category.)

cookielawinfo-checkbox-functional

.medicalfit.com

The information provided about this cookie in the Cookie Policy of the website is written in English.

(Translation: This cookie is set by the GDPR cookie consent plugin. The cookies are used to store the user's consent for cookies in the "Functional" category.)

cookielawinfo

.medicalfit.com

The information provided about
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/17

cookies

Domain

Notes

-checkbox-

analytics

this cookie in the Cookie Policy
of the website is drafted in English.

(Translation: This cookie is set by the GDPR cookie consent plugin. Cookies are used
to store the user's consent for cookies in the "Analytics" category.)

cookieinfo

-checkbox-

advertisement

.medicalfit.com

The information provided about
this cookie in the Cookie Policy
of the website is drafted in English.

(Translation: "This cookie is set by the GDPR cookie consent plugin. Cookies are used
to store the user's consent for cookies in the "Advertising" category.)

cookieinfo

-checkbox-

others

.medicalfit.com

The information provided about
this cookie in the Cookie Policy
of the website is drafted in English.

(Translation: This cookie is set by the GDPR cookie consent plugin. Cookies are used
to store the user's consent for cookies in the "Others" category.

b.- About the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history
and cookies, without taking any action on the webpage, a cookie information banner appears at the
bottom of the main page with the following message:

WE RESPECT YOUR PRIVACY:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/17

We use our own and third-party cookies to improve our services. You can configure the installation of
cookies using the following button: <> - <>

There is no option within this banner to reject all cookies; there is only the option to accept cookies
(<>) or manage them granularly through the control panel (<>).

If you choose to accept cookies that are not of a technical nature by clicking on the <> option, it is
verified that the website continues to use the cookies detected at the beginning of the browsing
session.

If you wish to access the control panel through the <> link, the website displays a panel where the
cookie groups are deactivated (Position OFF), but if you wish not to accept cookies by clicking on the

<> option without having selected any of the cookie groups, it is verified that the website continues to use the same cookies detected at the beginning.

3rd.- About the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link available at the bottom of the main page, the website redirects the user to a new page <https://www.medicalfit.com/politica-de-cookies/> where information is provided about what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the mechanisms available in the browser installed on the terminal equipment. However, the information about the purposes of the cookies that are installed is provided in English.

4th.- About the possibility of modifying the consent given regarding cookies at any time during web browsing.

If the user has given initial consent for the website to use cookies that are not technical or necessary and wishes, at a certain moment, to modify that consent, there is NO possibility to access the cookie control panel once consent has been given.

SEVENTH: According to the report collected from the AXESOR tool, the entity LABORATORIO PEDRO PERALES, S.L.P. with CIF: B23636103 has a business volume of 3MM euros in the year 2022.

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/17

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

a).- Installation of cookies on the terminal equipment prior to user consent:

Article 22.2 of the LSSI establishes that users must be provided with clear and complete information regarding the use of data storage and retrieval devices and, in particular, regarding the purposes of data processing. This information must be provided in accordance with the provisions of the GDPR. Therefore, when the use of a cookie involves processing that allows for the identification of the user, the data controllers must ensure compliance with the requirements established by the data protection regulations.

However, it is necessary to point out that the obligations established in Article 22.2 of the LSSI would not apply to those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user.

In this regard, the GT29, in its Opinion 4/2012, interpreted that among the cookies exempted would be user input cookies (those used to fill out forms or as management of a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface personalization cookies; and some plug-in cookies for sharing social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use. On the contrary, it will be necessary to inform and obtain the prior consent of the user before using any other type of cookies, whether first-party or third-party, session or persistent.

In this case, during the check conducted on the website in question, it was detected that upon first accessing it, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on it, the following non-technical cookies were used:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

9/17

Analysis or measurement cookies:

Cookie “_ga_4H4WSZ6691” whose provider is “.medicalfit.com”

Cookie “_ga” whose provider is “.medicalfit.com”

Behavioral advertising or targeting cookies:

Cookie “_fbp” whose provider is “.medicalfit.com”.

Preference, personalization, or functionality cookies:

Cookie “pll_language” whose provider is “.medicalfit.com”

Google Analytics cookies:

Cookie “AEC” whose provider is “.google.com”

Cookie “DV” whose provider is “.google.com”.

Cookie “NID” whose provider is “.google.com”.

Cookie “SOCS” whose provider is “.google.com”.

Cookies whose function has been identified:

Cookie “cookielawinfo-checkbox-necesario” from “.medicalfit.com”

Cookie “cookielawinfo-checkbox-rendimiento” from “.medicalfit.com”

Cookie “cookielawinfo-checkbox-funcional” from “.medicalfit.com”

Cookie “cookielawinfo-checkbox-analytics” from “.medicalfit.com”

Cookie “cookielawinfo-checkbox-advertisement” from “.medicalfit.com”

Cookie “cookielawinfo-checkbox-others” from “.medicalfit.com”

b).- Regarding the existing cookie information banner on the first layer (main page):

The cookie banner on the first layer must include information regarding the identification of the publisher responsible for the website, in case their identifying data is not included in other sections of the page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or third-party, without the need to identify them in this first layer.

Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created and must include information on how the user can accept, configure, and reject the use of cookies, with the warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must contain a clearly visible link directing to a second layer of information about the use of cookies. This same link may be used to lead the user to the panel of

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

10/17

Cookie settings, provided that access to the settings panel is direct, that is, the user does not have to navigate within the second layer to locate it.

In the case at hand, it is noted that the existing cookie information banner on the first layer of the

relevant websites contains the message: "We use our own and third-party cookies to improve our services. You can configure the installation of cookies using the following button: <>," but it does not identify the purposes for which the cookies will be used or whether they are first-party or third-party cookies. It also does not inform about the type of data that will be collected.

c).- Regarding consent for the installation of cookies on the terminal equipment:

For the use of non-exempt cookies, it is necessary to obtain the user's express consent. This consent can be obtained by clicking "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered a clear affirmative action under any circumstances and will not imply the granting of consent by itself. Similarly, accessing the second layer if the information is presented in layers, as well as the navigation necessary for the user to manage their preferences regarding cookies in the control panel, is also not considered an active behavior from which acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing without offering the user any alternative that allows them to freely manage their preferences regarding the use of cookies.

If the option is to go to a second layer or cookies control panel, the link must take the user directly to that settings panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented, one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for the configuration of cookies, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also provide, in any case, a mechanism that allows rejecting the use of cookies and/or doing so granularly.

On the other hand, the withdrawal of previously granted consent by the user must be possible at any time. To this end, the publisher must offer a mechanism that allows for the easy withdrawal of consent at any time. It will be considered that such ease exists, for example, when the user

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/17

have simple and permanent access to the management or configuration system of cookies.

If the editor's cookie management or configuration system does not allow the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and later wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

In the case at hand, it was verified that it is not possible to reject all cookies that are not of a technical nature in the information banner present in the first layer, nor in the control panel, since if the option "Save and accept" is clicked without having moved any cursor of the cookie groups from the "OFF" position to the "ON" position, it is confirmed that the website continues to use the same cookies detected at the beginning.

d).- Regarding the information provided in the second layer (cookie policy):

There must be a second layer on the website "Cookie Policy" where more detailed information is provided about the characteristics of the cookies, including information about the definition and generic function of cookies (what cookies are); about the type of cookies used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the editor and/or also by third parties with

identification of the latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the profiling that involves automated decision-making.

In the case at hand, the information provided in the “Cookie Policy” of the website regarding its purposes is provided in English, which is not an official language in Spain.

e).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

Users must be able to withdraw the previously granted consent at any time. To this end, the editor must ensure that it provides information to users in its cookie policy on how they can withdraw consent. The user must be able to revoke consent easily. The system offered to withdraw consent must be as easy as the one used when consent was granted. It will be considered that this ease exists, for example, when the user has simple and permanent access to the management or configuration system of cookies.

In this case, it is not possible to modify the consent granted for the use of non-technical or necessary cookies at any time during web browsing since there is no permanent link that redirects the user to the control panel.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/17

III

Classification of the possible infringement committed

From the deficiencies detected regarding the cookie policy on the website

<http://www.dentalesthetic.es/>, namely:

- The use of cookies that are not of a technical nature without the prior consent of the user;
- The failure to generically identify the purposes for which the cookies will be used in the general information banner.
- The impossibility of rejecting cookies that are not of a technical nature in the first layer or in the control panel, and
- The impossibility of modifying the consent granted for the use of cookies at any time during web browsing.

All of this could imply, on the part of the accused, the commission of the infringement of Article 22.2 of the LSSI, as it establishes the following:

“Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, about the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of carrying out the transmission of a communication over an electronic communications network or, to the extent strictly necessary, for the provision of an information society service expressly requested by the recipient.”

IV.

Proposal and Graduation of the Sanction

This infringement is classified as “minor” in Article 38.4 g) of the aforementioned Law, which considers as such: “Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.”, and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the “graduation of the amount of sanctions”, taking into account the following criteria:

a) The existence of intent.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/17

- b) Time period during which the infringement has been committed.
- c) Recidivism for committing infringements of the same nature, when declared by a firm resolution.
- d) The nature and extent of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

- The existence of intent (section a). This expression must be interpreted as equivalent to the degree of culpability according to the ruling of the National Court dated 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.

In accordance with these criteria, and without prejudice to what results from the instruction of this file, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on its owned website, an initial sanction of 5,000 euros (five thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity LABORATORIO PEDRO PERALES, S.L.P. with CIF: B23636103, owner of the website, <https://www.medicalfit.com> (<http://www.dentalesthetic.es/>), for the violation of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the aforementioned regulation.

SECOND: TO APPOINT Mr. B.B.B. as Instructor, and Mr. C.C.C. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
14/17

The sanction that may correspond would be, without prejudice to what results from the instruction of this file, €5,000 (five thousand euros).

FIFTH: NOTIFY this agreement to initiate sanctioning proceedings to the entity, LOCAL VERTICALS, with CIF: B02789808, granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that is to be imposed in this procedure, equivalent in this case to €1,000. With the application of this reduction, the sanction would be established at €4,000, resolving the procedure with the imposition of this sanction. Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of the amount of this sanction, equivalent in this case to €1,000. With the application of this reduction, the sanction would be established at €4,000, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at €3,000 (three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above (€4,000 or €3,000), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Likewise, the proof of payment must be sent to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/17

The procedure shall have a maximum duration of nine months from the date of the initiation agreement. Once this period has elapsed without a resolution being issued and notified, it shall expire, and consequently, the proceedings shall be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

>>

SECOND: On June 18, 2024, the respondent has proceeded to pay the fine in the amount of 3000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the second has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202306302, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LABORATORIO PEDRO PERALES, S.L.P.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/17

Common of the Public Administrations, interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months starting from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es